CITY OF
Federal Way

CITY COUNCIL
REGULAR MEETING MINUTES
Remote Meeting
May 4, 2021 - 6:30 p.m.

1. CALL MEETING TO ORDER

Mayor Ferrell called the meeting held remotely to order at 6:32 p.m.

City officials in attendance: Mayor Jim Ferrell, Council President Susan Honda, Councilmember Lydia Assefa-Dawson, Councilmember Greg Baruso, Councilmember Hoang Tran, Councilmember Leandra Craft, Councilmember Martin Moore, and Councilmember Linda Kachmar.

City staff in attendance: City Attorney Ryan Call and City Clerk Stephanie Courtney.

2. PLEDGE OF ALLIGIANCE

Mayor Ferrell led the flag salute.

3. PRESENTATIONS

a. State of the Court

Judge David Larson and Judge Rebecca Robertson provided information on changes made in the Municipal Court to address social distancing and safety protocols due to COVID-19. Judge Larson overviewed the work being done in the courts to address mental health and addiction related issues. He introduced Mr. Winston Bell with Black Indigenous Growth Gatherers (BIGG) and Ms. Amy Pugsley with RI International who both spoke about referral, education, and wraparound support programs. He further invited State Representative Jamila Taylor who spoke regarding legislation and the *Blake* decision which legalized the possession of controlled substances.

Councilmembers thanked the judges, Representative Taylor. and those who provided information. Judge Larson and Representative Taylor answered questions regarding the *Blake* decision and the possibility of a south county regional facility for addiction and recovery.

b. Proclamation: Mental Health Awareness Month

Council President Honda read and virtually presented the proclamation to Kimberley Brazier-Preston, Case Manager/Care Coordinator with Valley Cities Counseling and Consultation, who accepted and thanked the Mayor and Council. She also thanked Judge Larson and the court for their community partnerships. She noted due to COVID-

19 there is a high demand for services and services have had to adapt.

c. Proclamation: Physical Fitness and Sports Month

Councilmember Tran read and virtually presented the proclamation to Kimberly and Ken DeMile from FW Fitness Studio and Leif Ellsworth, Manager of the Federal Way Community Center. They all thanked the Mayor and Council for this recognition and highlighted events and opportunities to get healthy and stay active. They invited everyone to the Federal Way Farmer's Market on May 15 for a great fitness event.

d. Proclamation: Neurofibromatosis Awareness Month

Councilmember Kachmar read and presented the proclamation to Federal Way residents Becky and Dan Vacanti on behalf of their daughter Ashley who was born with Neurofibromatosis. Mr. and Ms. Vacanti thanked the Mayor and Council and provided information regarding this genetic disorder of the nervous system.

e. American Rescue Plan Act (ARPA)

Economic Development Director Tim Johnson provided information on the known details of the Act, stating guidance has yet to be distributed from the federal government. Council thanked Mr. Johnson and asked for a study session or special meeting in the near future to discuss the details.

f. Mayor's Emerging Issues and Report

- **COVID-19/King County Phase Update**

  Mayor Ferrell noted Deputy Chief Kyle Sumpter will be acting Emergency Manager while Ray Gross is on medical leave.

  Chief Sumpter noted the State is currently on pause to see if the numbers will start trending back down before the Governor moves phases. He acknowledged the frustration felt across the country as different states follow different rules and guidelines. He suggested the "Big 5 to Stay Alive" which includes wearing face coverings, social distancing, washing hands often, remote and telephonic meetings, and getting a vaccine. He noted currently 54% of Washingtonians have received at least one dose.

- **Needle Exchange Working Group**

  Mayor Ferrell thanked Council President Honda for her leadership and for Chairing the meetings and provided information regarding the working group. He noted they have met three (3) times and he reiterated the needle exchange program is legal per the State Courts. It is run by the King County Board of Health and the Council is unable to acfto prohibit the program. He looks forward to speaking again with Director Patty Hayes regarding the working group recommendations.

  Council President Honda noted the group would like to continue to meet, however it does not appear additional meetings would result in different viewpoints or desired outcomes. She appreciates everyone who worked on this issue and for the time they have taken to give their thoughtful participation.

- **Report on Recent Events**

  Mayor Ferrell reported on the Federal Way Farmer's Market Opening Day at their new location on May 1; the African American/Black Community Quarterly Meeting held on April 21; the Business Resiliency Task Force Meeting on April 22; and the Community Continuity Task Force on April 23. All meetings were held remotely over Zoom.

g. Council Committee Reports

Parks/Recreation/Human Services/Public Safety Committee (PRHSPS): Chair Kachmar noted the next meeting of the committee will be May 11 at 5:00 p.m. and reviewed the agenda items.

Land Use/Transportation Committee (LUTC): Chair Baruso reported on the recent committee meeting which forwarded items to the May 15 Council meeting. He noted the next committee meeting will be June 7 at 5:00 p.m.

Finance, Economic Development Regional Affairs Committee (FEDRAC): Chair Tran reported the next meeting of this committee will be May 25 on Zoom.

Lodging Tax Advisory Committee (LTAC): Chair Assefa-Dawson provided information specific to job loss in the tourism industry. The next meeting will be May 12 at 10:00 a.m.

Regional Committees Report (PIC): Councilmember Moore reported there will not be a meeting in May.

Council President Report: Council President Honda acknowledged Asian American and Pacific Islander Heritage Month she noted upcoming meetings including Coffee with Council on May 19. She encouraged residents to visit the Council Facebook page for updates, information, and ways to contact the Councilmembers. She also directed citizens to a Sound Transit survey which is open until May 10 and is focused on design elements of the Federal Way Transit Station.

4. PUBLIC COMMENT

Stephanie Taylor stated that homelessness and youth services are the biggest areas of need in Federal Way and her belief addiction is a result of certain needs not being met.

Sonya Watkins shared her struggles of being in jail and losing Section 8 Housing. Mayor Ferrell connected her with Policy Advisor Bill Vadino to assist with her housing complications.

Zachary Tolley spoke in support of the current needle exchange program and the importance of public health.

Anna Patick spoke against the needle exchange program sharing her observations of the effects this program is having on Federal Way. She feels this program helps drug addicts instead of treating the symptoms of their addiction and providing resources.

Ken Blevens spoke in opposition to the needle exchange program.

Naomi Smith shared her belief drug addiction is not a choice and questioned criminal tactics being used to try and help eradicate drug use.

Letter from Grace Lubrano read into the record by the City Clerk expressed opposition to the needle exchange program.

5. CONSENT AGENDA

a. Minutes: April 20, 2021 Regular and Special Meetings

b. Monthly Financial Report - March 2021

c. Accounts Payable Vouchers 03/16/2021 - 04/15/2021 & Payroll Vouchers 03/01/2021-03/31/2021

d. Dump Truck Replacement

COUNCIL PRESIDENT HONDA MOVED APPROVAL OF ITEMS A THROUGH D ON THE CONSENT AGENDA; SECOND BY COUNCILMEMBER MOORE SECOND. The motion passed unanimously as follows:

Council President Honda	*yes*	*Councilmember Craft*	*yes*
Councilmember Assefa-Dawson	*yes*	*Councilmember Moore*	*yes*
Councilmember Baruso	*yes*	*Councilmember Kachmar*	*yes*
Councilmember Tran	*yes*		

6. ORDINANCES

First Reading

a. Council Bill #802/Ordinance Creating Hazard Pay requirements for Grocery Workers during the COVID-19 ***Emergency/APPROVED*** ***ORD. #21-912***
AN ORDINANCE OF THE CITY OF FEDERAL WAY, WASHINGTON, RELATING TO HAZARD PAY FOR GROCERY WORKERS IN RESPONSE TO THE EMERGENCY SITUATION CREATED BY COVID-19.

Steve McNey, Communications and Government Relations provided a presentation regarding the Mayor's Plan to address hazard pay for grocery workers. The proposed ordinance would apply to all stores with more than 2,500 square feet of retail space that have 25% or more of their floor space dedicated to selling grocery items. Those stores will be required to pay a total of $2.50 additional per hour (unless already paying $2.50 or more per hour independently of this ordinance) to non-executive level employees with the exception of delivery truck drivers. This ordinance, if passed, will become effective May 15 and continue for a minimum of 90 days.

Mr. McNey reported the Mayor's plan allows for stores between 2,500 and 10,000 square feet to apply for grant funds under the yet-to-be established "City of Federal Way Small Grocery Hazard Pay Grant" program to cover hazard pay.

Public Comments:

Holly Chisa, on behalf of NW Grocer Association, thanked the city for hearing the grocer concerns and stated' her opposition to the proposed ordinance.

Cindy Wilbur spoke in support for hazard pay for grocery workers and shared her

experiences in working in the grocery industry for the last year.

Christopher Navarrette is a grocery worker and spoke in support of implementing hazard pay similar to other jurisdictions in the Puget Sound region.

Charles Brown spoke on behalf of grocery stores in Federal Way. He is in opposition of ordinance and feels it conflicts with collective bargaining where the management bargains in good faith with the unions. He requested the hazard pay be connected to vaccinations for employees and is also concerned with requiring the store management to enforce a mask mandate which is not currently being enforced by the Police Department.

Councilmembers thanked Mr. McNey for the presentation and inquired on the legality of requiring vaccines of grocery workers and if the requirement for management to enforce the mask mandate could be removed or amended.

Councilmember Baruso thanked those who spoke to this ordinance and noted he would like to see the per hour increased, referencing other jurisdictions requiring an additional $4.00 per hour.

COUNCILMEMBER BARUSO MOVED APPROVAL OF THE ORDINANCE AMENDING THE PER HOUR AMOUNT TO $3.00 PER HOUR; COUNCILMEMBER ASSEFA-DAWSON SECOND.

COUNCILMEMBER KOCHMAR MOVED TO AMEND THE MOTION TO STRIKE SECTION 7 OF THE PROPOSED ORDINANCE IN ITS ENTIRETY.

The amendment died for lack of a second.

COUNCILMEMBER KOCHMAR MOVED TO AMEND SECTION 7 TO STRIKE "THAT MASK REQUIREMENTS IN PUBLIC ARE ALWAYS ENFORCED" AND REPLACE WITH "THAT EMPLOYERS MAKE ALL REASONALBLE EFFORTS TO ENFORCE MASK MANDATE REQUIREMENTS"; COUNCIL PRESIDENT HONDA SECOND. The motion passed unanimously as follows:

Council President Honda	*yes*	*Councilmember Craft*	*yes*
Councilmember Assefa-Dawson	*yes*	*Councilmember Moore*	*yes*
Councilmember Baruso	*yes*	*Councilmember Kachmar*	*yes*
Councilmember Tran	*yes*		

Point of order: The Council needed to make a motion to suspend Council rules to allow first and second reading in the same meeting, as well as the City Clerk reading the ordinance title into the record.

With no objections noted, Mayor Ferrell set aside the main motion as amended.

City Clerk Stephanie Courtney read the ordinance title into the record.

COUNCIL PRESIDENT HONDA MOVED TO SUSPEND COUNCIL RULE 2.2(H) TO ALLOW FIRST READING AND ENACTMENT OF THE ORDINANCE IN ONE MEETING; COUNCILMERMBER MOORE SECOND.

Council President Honda requested information regarding waiving this rule. City Attorney Call noted this is a self-imposed rule set out in the Council Rules of Procedure which allows for a first and second reading of ordinances; therefore, they are waiving their own rule. If approved, the ordinance effective date is May 15.

Council President Honda shared her concern asking if all impacted stores have been contacted and are aware. With the enactment being done in a single meeting she believed there might be employers who have not been notified. Mr. McNey confirmed he has been working with the two industries (grocers and unions) and this is the most comprehensive program in the state.

Motion to waive Council rule 2.2(h):

Council President Honda	*yes*	*Councilmember Craft*	*yes*
Councilmember Assefa-Dawson	*yes*	*Councilmember Moore*	*yes*
Councilmember Bamso	*yes*	*Councilmember Kochmar*	*yes*
Councilmember Tran	*yes*		

Councilmember Tran asked Councilmember Baruso to clarify the reasoning behind increasing the amount from $2.50 to $3.00. Councilmember Baruso feels $3.00 is a mid-range amount and good compromise.

COUNCIL PRESIDENT HONDA MOVED TO SUSPEND COUNCIL RULES TO ALLOW THE MEETING TO CONTINUE PAST 10:00 P.M.; COUNCILMEMBER ASSEFA-DAWSON SECOND. The motion passed unanimously as follows:

Council President Honda	*yes*	*Councilmember Craft*	*yes*
Councilmember Assefa-Dawson	*yes*	*Councilmember Moore*	*yes*
Councilmember Bamso	*yes*	*Councilmember Kochmar*	*yes*
Councilmember Tran	*yes*		

Councilmembers continued to debate this item stating concerns of manipulating the market by randomly picking a per hour requirement businesses must pay, instead of giving assistance to make the workplace safer. Additional concerns were related to grocery stores which have left Federal Way previously and those that have closed in other jurisdictions where hazard pay was enacted. Members of Council also voiced concern over requiring employers to pay for this increase before the ARPA funds for the city grant program has been established.

Councilmembers also voiced support for hazard pay for grocery workers who are risking personal safety in the public. Additional support of this ordinance noted the increase could offset increased costs essential workers have experienced including cost of PPE, health care costs, and childcare costs.

COUNCILMEMBER BARUSO CALLED THE QUESTION.

The motion failed 2-5 as follows:

Council President Honda	*no*	*Councilmember Craft*	*no*
Councilmember Assefa-Dawson	*no*	*Councilmember Moore*	*yes*
Councilmember Bamso	*yes*	*Councilmember Kochmar*	*no*
Councilmember Tran	*no*		

Debate continued.

In response to questions regarding the American Rescue Plan Act (ARPA) Funds, City Attorney Call clarified hazard pay for essential workers (such as grocery workers) is specifically addressed in the Act as a qualifying expense. He also agreed the grocers who may qualify for the city grant will first need to cover the costs of hazard pay until the grant program is up and running.

Main motion, as amended passed 5-2 as follows:

Council President Honda	*no*	*Councilmember Craft*	*yes*
Councilmember Assefa-Dawson	*yes*	*Councilmember Moore*	*yes*
Councilmember Baruso	*yes*	*Councilmember Kachmar*	*no*
Councilmember: Tran	*yes*		

7. COUNCIL REPORTS

Councilmember Assefa-Dawson wished everyone a Happy Cinco de Mayo.

Councilmember Baruso acknowledged Teacher and Nurses Week and thanked those who do these important jobs.

Councilmember Tran wished a Happy Mother's Day to all mothers.

Councilmember Craft provided no report this evening.

Councilmember Moore thanked the councilmembers who voted in favor of the ordinance. He noted the state legislature allocated $1 million towards Camp Kilworth and he is eager to see what will be done with those funds. He recognized the citizen input regarding current issues and encouraged it to continue.

Councilmember Kachmar missed the Farmer's Market and is looking forward to attending this upcoming weekend.

Council President Honda encouraged safe social distancing practices as Cinco de Mayo is celebrated. She acknowledged Boys' Day (May 5) and Girls' Day (March 3) in Japan which she and her children have always celebrated. On May 8 the Federal Way Chorale will have a free concert on Zoom. She closed her report noting her vote on the ordinance reflected her desire to not limit the recognition to one class of workers noting other retail workers as one example.

8. EXECUTIVE SESSION

- Sale or Lease of Property pursuant to RCVV 42.30.110 (1)(c) - not needed
- Property Acquisition Pursuant to RCW 42.30.110(1) - not needed

9. ADJOURNMENT

There being nothing further on the agenda; the regular meeting was adjourned at 10:56 p.m.

Attest:

Stephanie Courtney
City Clerk

Approved by Council: 05{(&/1.{fl,(